

Acceptable Workplace Behaviour Policy & Procedure

Version
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1. Purpose

Ted's Cameras is committed to ensuring ethical, honest and respectful behaviour in the workplace and a workplace environment that is safe and constructive to employee health and well-being. This includes Equal Employment Opportunity (EEO).

Expected standards of behaviour are set out in the *Code of Conduct*. Ted's Cameras will not tolerate the actions of employees who display or exhibit unacceptable behaviours in the workplace and are resolute in complying with the relevant laws.

Ted's Cameras has responsibilities to many stakeholders including its employees, contractors, suppliers, customers and the broader community. Our responsibilities are reflected in the behaviours expected of employees and detailed in the *Code of Conduct*. The purpose of this policy is to explain what is meant by Equal Opportunity, Discrimination, Harassment and Bullying; provide guidance in identifying behaviours that may constitute discrimination, harassment, victimization or bullying; and outline the resources, support and procedure for addressing any complaint made under this policy.

Failure to comply with the *Code of Conduct* and expected breaches of standards of behaviour (acceptable workplace behaviour) may result in disciplinary action including possible termination of your employment.

2. Scope

This policy and procedure applies to all employees and contractors of Ted's Cameras, who are expected to comply with this policy and procedure, promote a culture of respect and equality and refrain from engaging in unlawful discrimination, harassment, vilification, victimisation and bullying.

3. Definitions

Manager: Store Manager, Assistant Store Manager, Relief Manager, Line Manager

Equal Employment Opportunity (EEO): is about recognising and valuing diversity together with ensuring individuals do not face unnecessary barriers to participating in, or realising, their employment potential. It is about providing individuals with the same rights and opportunities in all aspects of the employment relationship including job access, job security, training, performance reviews, remuneration, work conditions and advancement. EEO is about providing a workplace environment that is free from discrimination and harassment, where individuals are treated fairly, equitably, impartially and respectfully. Equal Opportunity Acts prohibit unlawful discrimination, harassment, vilification and victimisation.

Protected Grounds: The grounds, attributes or characteristics that are protected by anti-discrimination legislation vary between Federal and State jurisdictions, and may include: age, disability or impairment (physical, intellectual, psychological), marital status / relationship status), pregnancy / breast feeding, religious dress / beliefs / practices / activities / affiliations, political beliefs / convictions / activities, race / ethnicity / colour / social origin / nationality, sex / gender, criminal record HIV AIDS Status, Parental or Carer Status / Family Responsibilities, sexual orientation / preference / LGBTI / Lawful Sexual Activity, union membership or affiliation, association with persons covered by the above.

Definitions of Unacceptable Workplace Behaviours

Workplace Violence: Any incident where an employee is physically attacked or threatened in the workplace.

Workplace Bullying: Repeated and unreasonable behaviour, directed towards a worker or group of workers that creates a risk to health and safety. Unreasonable behaviour includes victimising, humiliating, intimidating or threatening. Whether behaviour is unreasonable can depend on whether a reasonable person might see the behaviour as unreasonable in the circumstances.

What isn't bullying? A manager can make decisions about poor performance, take disciplinary action, and direct and control the way work is carried out. Reasonable management action that is carried out in a reasonable way is not bullying. Management action that isn't carried out in a reasonable way may be considered bullying.

Discrimination: To treat a person less favourably because of a characteristic protected by law, for example disability or due to age, race, gender, religion, marital situation, industrial activity, or impairment.

Sexual Harassment: is any deliberate verbal or physical conduct that offends, humiliates or intimidates the person to whom it is directed". It is unwelcome and uninvited. It does not include conduct occurring within a personal relationship or mutual attraction and/or friendship. Such friendships, whether sexual or not, are a

private concern. Sexual harassment may occur in a single incident or as a series of incidents. The harassment may be subtle and implicit rather than explicit. Sexual harassment is not about mutual attraction or reciprocated private relationships.

Harassment: is an unwelcome behaviour or comment that is harmful to the work environment. Harassment takes many forms but can be defined as insulting, intimidating, humiliating, malicious, degrading, or offensive comments or acts directed toward another person or group.

Victimisation: is the harassment of an individual who has made a complaint, or who intends to make a complaint, or has helped someone else make a complaint. Victimisation refers not only to the intimidation of complainants or potential complainants but also the alleged harasser or discriminator, witnesses, supporters and those resolving or investigating any complaints. Anti-discrimination legislation contains provisions to protect.

Vilification: is an act, that occurs publicly, that may incite, encourage or urge others to hate, have contempt or revulsion for, or ridicules, an individual or group of individuals because of their actual or assumed race, colour, ethnicity, gender, religion, gender identity, medical status or any other 'protected ground'.

4. Policy

Ted's Cameras will not tolerate any form of workplace violence, bullying, discrimination, sexual harassment or harassment. Any employee found to be behaving unacceptably will be dealt with according to the severity of the matter.

Behaviours that are classed as unacceptable can include, but are not limited to:

Teasing or practical jokes

Swearing

Insults

Excessive supervision

Constant criticism

Spreading rumours or gossip

Overworked/underworked

Threatening of termination

Threats of physical damage

Pushing, punching and kicking

Racial abuse

Humiliation

Unfair or excessive nit-picking

Assigning meaningless non-job-related tasks

Offensive language, yelling; or screaming

Behaviour intended to cause offence or embarrassment

Withholding information relevant to their job

Behaving aggressively

Pressuring someone to behave inappropriately

Deliberate isolation or excluding someone from work-related events

Unreasonable work demands

Damaging another employee's belongings

Sexual harassment:

Unwelcome physical conduct (e.g. touching, patting or deliberately brushing against a person).

Demands for sexual favours.

Staring or leering.

Offensive or demeaning comments, joke and innuendo.

Unwelcome and persistent sexual propositions or advances.

Offensive remarks, gestures, staring or displaying offensive material.

Unwelcome or uncalled for remarks or insinuations about a person's sexual activities or private life.

Unwelcome familiarity.

Sexual insults or taunts.

Sending explicit emails, photos or SMS messages or via social media.

Verbal or physical harassment of a sexual nature.

Making comments, not necessarily crude, that stereotype due to gender, appearance or sexual preference.

Behaviour that would be considered an offence under criminal law such as stalking, molestation or indecent assault.

What is not "Harassment or Bullying"

Normal workplace activities, particularly in accordance with relevant policies and procedures, are not discrimination, harassment or bullying. The following workplace activities would be regarded as being reasonable management actions:

Constructive feedback or counselling of work performance or behaviour

Issuing reasonable instructions

Warnings of discipline in accordance with company policy

Giving difficult assignments that relate to the job role

Requiring an employee to work reasonable extra hours to complete responsibilities

Assigning mundane, but necessary, job-related tasks

Fair and appropriate supervisory practices

Behaviour that is genuinely acceptable to everyone involved does not break any policy rule or law.

It is imperative that all employees have the freedom to voice their concerns if there are victims of unacceptable behaviour or see a fellow employee being bullied. Employees should discuss their concerns with their manager or with Human Resources.

If you are bullied or harassed, you should keep a diary of all incidents (dates, times, particulars) and any witnesses, and any evidence if available.

Your support is sought in monitoring and avoiding practices, attitudes and traditions which lead to unacceptable workplace behaviours.

Do not ignore unacceptable workplace behaviour thinking it will go away. Silence gives the impression that the behaviour is acceptable. As Ted's Cameras is committed to providing an environment which is safe for its employees and free from unacceptable workplace behaviours, employees will not be disadvantaged in their employment conditions or opportunities as a result of making a complaint. Ted's Cameras will ensure that the rights of all parties involved with the complaint will be protected. All individuals are entitled to natural justice, privacy and representation

Complaints Procedure

If you have been subject to unacceptable workplace behaviour you should follow this procedure in the prescribed order to resolve the matter.

1. Step 1: Informal Resolution: Make the other person aware that the behaviour is unacceptable to you, if you feel safe in doing so. Tell him/her that the conduct must stop. In the majority of cases, telling the person will be enough to stop the person's unwelcome behaviour. Dealing with grievances informally (in this way), may allow for issues to be settled. If this action has not resulted in a satisfactory outcome continue to Step 2.

2. Step 2: Formal Resolution: If you feel you do not wish to complain directly to the person, or your efforts did not lead to a resolution, the next step is to speak to your Manager, WHS Coordinator or Human Resources. Formal Resolution process may be appropriate when informal resolution attempts have failed, victimisation is occurring, the complaint involves serious allegations, the complaint involves senior staff, and/or the complainant requests a formal process.

The following will be treated as **confidential**:

the employee making the complaint approaches his/her manager, WHS Coordinator or Human Resources

this person will listen, discuss options and assist the employee to take the following actions which may include:

A decision as to whether the employee wishes to proceed with the complaint.

If the decision is to involve a third party to counsel or mediate the councillor or mediator will listen, clarify the complaint and provide the employee making the complaint with information about available options.

3. Step 3: If Step 2 does not resolve the issue, then Step 3 is to go to Human Resources.

4. Step 4: Human Resources will meet with the staff member and investigate the complaint.

Parties of the complaint are entitled to have an advocate or other support person present in any interviews or meetings.

It is expected that all participants involved in any complaint or investigation must keep all aspects of the matter in the strictest confidence.

If the employee making the complaint wants to proceed, the matter will be discussed with the person complained about, who will be invited to make a response (this is part of a *natural justice* process).

Human Resources will ensure that complaints are treated with understanding and empathy of the issues, and confidentiality and advise the appropriate mediation / resolution strategies. Human Resources will be available to discuss, in confidence, any matter, which an employee believes is inappropriate.

The Company has a commitment to investigate any complaint thoroughly and ensure that anyone who makes a genuine complaint is supported and not penalised in any way. All the necessary investigations are undertaken. For further detail, please refer to section *How an investigation is conducted?*

Human Resources are responsible for taking follow-up action to ensure that any resolution(s) have been implemented and that the behaviour has stopped.

It is hoped, (although not always possible) that the issue is resolved with a mutually agreeable outcome.

If the matter is not satisfactorily resolved, Human Resources will advise the employee making the complaint of any other available options including referral to an external body.

In the matter of a criminal nature, the police will be contacted.

Receiving, Making and Handling Complaints

1. What do Managers do if they receive a complaint about a team member's performance / behaviour?

If unsure how to deal with a complaint, consult the HR Department.

Deal with all complaints in the strictest of confidence. This is not a matter for discussion with other team members unless they are directly involved.

In the case of a criminal offence, consideration should be given to notifying the police. This should only occur after consultation with Human Resources.

2. What to do if an employee wishes to make a complaint about another team member?

Discuss the matter only with those immediately involved and your manager or Human Resources. Do not spread gossip or create rumours.

If you cannot resolve the situation yourself, advise your manager or Human Resources. They will arrange to conduct an investigation to establish the facts and take appropriate action.

How an investigation is conducted

Human Resources investigating complaints will ensure that they:

Deal with the matter thoroughly, objectively and impartially.

Investigation methods will begin with the interviewing of both parties.

Allow the employee to bring along another person to the interview for support.

Counsel the employee about keeping the matter confidential – minimising gossip in the workplace and making sure allegations and details are only disclosed to those who need to be involved. Ensuring that all notes are kept strictly confidential to maintain confidentiality and privacy.

Gain a broad outline of the issue, then step-by-step account of the details (dates, times, particulars, witnesses, evidence) using the complainant's words where possible.

All details are checked and confirmed in writing.

Any witnesses will be contacted and asked to give their account.

Allegations will then be put to the respondent and provided with a right of reply.

The reply will then be provided to the complainant for comment.

What happens if you are under investigation about a complaint regarding your behaviour / work performance?

You will be informed of the nature of the complaint and given a chance to respond to the allegations and the opportunity to address these problems. You can have a representative present at all the interviews regarding the complaint.

You will be advised that the complaint will be fully investigated fairly and impartially and in an unbiased manner. The complaint will not be pre-judged.

Detailed file notes of any interview conducted with you will be taken which you may be asked to sign. The file note will be kept in a secure place by Human Resources (as the investigator) – but not on your personal file until / unless the complaint is substantiated.

If appropriate, Human Resources will interview any witnesses and get them to recount events in their own words. Involvement of other parties will be kept to a minimum necessary to establish the facts of the complaint.

A check will be made to see whether any previous comments on behaviour/work performance have been

made.

What happens if a complaint is substantiated?

The investigator (Human Resources) together with the manager will decide the appropriate course of action to deal with the complaint. Discipline will be appropriate to the severity of the offence that initiated the complaint and may include:

Human Resources conducting an appropriate counselling or conciliation meeting with you (and any injured party/ies). The aim of conciliation is to enable all parties involved to understand each other and reach a mutually agreed solution to the matter.

A full report will be made on the confidential and impartial investigation and placed on your personal file.

A letter detailing the investigation of the complaint and recommendations as to remedial action will be forwarded to you. A copy of the letter will be placed on your personal file.

You will need to make a public, private, written or verbal apology to the injured party (if appropriate).

Removal or the task/ responsibility which has formed the basis of the complaint (if appropriate and does not affect overall position).

Transfer with no job advantage to another position.

Counselling support.

Copies of details of any disciplinary action, letters of warning to be placed on the employee's personal file.

Closer supervision of conduct.

Transfer to a position of lower job status and responsibility (demotion).

Transfer to another location.

Disciplinary action which may include counselling, warning, suspension or dismissal.

Further disciplinary action, including termination of employment, should the behaviour continue or there is any victimisation or retaliation against the complainant.

Vexatious Complaints

Frivolous or vexatious complaints are complaints that have no merit, are untrue or made to annoy, frighten, punish or take revenge on others. These types of complaints may be overtly malicious or simply have no basis or foundation.

Individuals or groups found to have deliberately made a vexatious complaint may be subject to counselling or disciplinary action.

5. References

See 8 Appendix

6. Related documents

Code of Conduct

Work Health & Safety Policy

Injury Management and Return to Work Policy and Procedure

Drug and Alcohol Policy

Electronic Communication Policy

Social Media Policy

Recruitment and Selection Procedure

Smoke Free Procedure

7. Version control

Version	Description of Changes	Date Issued	Author
1	Document created and approved	15 June 2015	KH
	Review	As reviewed	KH
2	Document reviewed and updated	13 February 2019	SD, National HR Manager
	Review	13 February 2021	
3	Document reviewed and updated	18 August 2022	AMC
	Review	18 August 2024	

Further assistance

Further information, advice or assistance please contact Human Resources on email: [hr@Ted's Cameras .com.au](mailto:hr@Ted'sCameras.com.au)

8. Appendix

Appendix 1 – EEO and Workplace Occupational Health and Safety (Bullying) Legislation

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EEO and Workplace Occupational Health and Safety (Bullying) Legislation

Federal

Fair Work Act

Sex Discrimination Act

Racial Discrimination Act

Disability Discrimination Act

Age Discrimination Act

Human Rights and Equal Opportunity Commission Act

Equal Opportunity for Women in the Workplace Act

State

Anti-Discrimination Act (NSW)

Criminal Records Act (NSW)

Industrial Relations Act (NSW)

Occupational Health & Safety Act (NSW)

Anti-Discrimination Act (QLD)

Workplace Health & Safety Act (QLD)

Industrial Relations Act (QLD)

Equal Opportunity Act (VIC)

Racial and Religious Intolerance Act (VIC)

Occupational Health & Safety Act (VIC)

Occupational Health, Safety and Welfare Act (SA)

Anti-Discrimination Act (TAS)

Workplace Health & Safety Act (TAS)

Equal Opportunity Act (SA)

Racial Vilification Act (SA)

Civil Liability Act (SA)

Whistle-blowers protection Act (SA)

Australian Capital Territory Discrimination Act (ACT)

Matthew
Grahame